

बिलासपुर उड़ीसा मार्ग NH-200
(New NH-49)

कुल रकबा:- 15.463 हे.

राथगढ़ वनमंडल रकबा:- 10.690 हे.

- Encl:-
1. 1st stage approval letter
07/03/2017
 2. 2nd stage approval letter
21/11/2023



भारत सरकार
GOVERNMENT OF INDIA
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय
MINISTRY OF ENVIRONMENT, FORESTS & CLIMATE
CHANGE

Regional Office (WCZ)
Ground Floor, East Wing
New Secretariat Building
Civil Lines, Nagpur - 440001
apccfcentral-ngp-mef@gov.in

F. No. FC-III/CH-7/2016-NGP/1454
49

Dated: 7th March, 2017

To

✓ The Principal Secretary (Forests),
Government of Chhattisgarh,
Forest Department,
Mantralaya, Mahanadi Bhavan,
New Raipur (CG).

Sub: Diversion of 15.463 ha of forest land in favour of Public Works Department (PWD), Raipur for upgradation and widening of NH-200 (New NH-49) from Raigarh – Urdawal (Odisha Border) in Raigarh, Bilaspur and Janjgir-Champa Forest Divisions in Raigarh, Bilaspur and Janjgir Districts in the State of Chhattisgarh – regarding.

Sir,

I am directed to refer to the State Government of Chhattisgarh's letter no. F-5-30/2016/10-2 dated 23.09.2016 on the above subject seeking prior approval of the Central Government under Section -2 of the Forest (Conservation) Act, 1980 and the Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh's letter no. Bhu-Prabandh/Vividh/115-578/2803 dated 23.11.2016, letter no. Bhu-Prabandh/Vividh/115-578/2803 dated 3.12.2016 and letter no. Bhu-Prabandh/Vividh/115-578/130 dated 12.01.2016 forwarding additional information as sought by the Regional Office vide its letter of even number dated 24.10.2016, 5.12.2016 and 28.12.2016, respectively and to say that the said proposal has been examined by the Regional Empowered Committee constituted under Section -4 of the Forest (Conservation) Act, 1980.

After careful examination of the proposal of the State Government and on the basis of the approval of the proposal by the Regional Empowered Committee, the Central Government hereby accords 'in-principle' under Section -2 of the Forest (Conservation) Act, 1980 for 15.463 ha of forest land in favour of Public Works Department (PWD), Raipur for upgradation and widening of NH-200 (New NH-49) from Raigarh – Urdawal (Odisha Border) in Raigarh, Bilaspur and Janjgir-Champa Forest Divisions in Raigarh, Bilaspur and Janjgir Districts in the State of Chhattisgarh subject to the fulfilment of the following conditions:

- Legal status of the diverted forest land shall remain unchanged;
- Compensatory afforestation, over Revenue Forest land, twice in extent to the forest land being diverted, shall be raised and maintained by the State Forest Department at the cost of the User Agency;
- The Revenue Forest land identified for raising compensatory afforestation shall be transferred and mutated in favour of the State Forest Department before issue of the Stage-II clearance;
- The Revenue Forest land transferred and mutated in favour of the State Forest Department shall be notified by the State Government as RF under Section-4 or PF under Section-29 of the Indian Forest Act, 1927 or under the relevant Section(s) of the local Forest Act, latest within a period of six months from the date of issue of Stage-II approval. The Nodal Officer shall report compliance in this regard along with a copy of the original notification declaring the non-forest land under Section 4 or

Section 29 of the Indian Forest Act, 1927 or under the relevant sections of the local Forest Act, as the case may be, within the stipulated period to the Central Government for information and record;

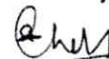
- v. The User Agency shall transfer the cost of raising and maintaining the compensatory afforestation, at the current wage rate, to the State Forest Department. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years;
- vi. The State Government shall charge the Net Present Value (NPV) of the forest land being diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 28.03.2008, 24.04.2008 and 09.05.2008 in Writ Petition (Civil) No. 202/1995 and the guidelines issued by this Ministry vide its letter No. 5-3/2007-FC dated 05.02.2009 in this regard;
- vii. At the time of payment of the Net Present Value (NPV) at the then prevailing rate, the User Agency shall furnish an undertaking to pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India;
- viii. All the funds received from the user agency under the project, except the funds realized for regeneration/ demarcation of safety zone, shall be transferred to Ad-hoc CAMPA, through e-challan, in the Savings Bank Account pertaining to the State concerned;
- ix. The User Agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
- x. The boundary of the diverted forest land, shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- xi. The user agency shall arrange to raise strip plantation on either side of the road and central verge at project cost, as per IRC specification, with maintenance of 7-10 years.
- xii. Wherever possible and technically feasible, the User Agency shall undertake afforestation measures along the roads within the area diverted under this approval, in consultation with the State Forest Department at the project cost.
- xiii. The reclamation of quarry should be done under the supervision of the State Forest Department. The quarry shall be reclaimed and afforested completely before the project is closed.
- xiv. Overburden shall not be dumped outside the width of the road. The muck generated in the earth cuttings will be disposed of at the designated dumping sites and in no case the muck/debris will be allowed to roll down the hill slopes.
- xv. The user agency will provide retaining walls, breast walls and drainage as per requirement to make the slope stable.
- xvi. The User agency will undertake comprehensive soil conservation measures at the project cost in consultation with the State Forest Department, if required.
- xvii. The designing of culverts/bridges, if any, over the natural streams/rivers/canals should be done in such a manner that it does not hamper the natural course of water, does not give rise to water-logging, and also does not hamper movement of wild animals.
- xviii. No labour camp shall be established on the forest land;
- xix. The User Agency shall provide fuels preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- xx. The forest land shall not be used for any purpose other than that specified in the proposal;
- xxi. The layout plan of the proposal shall not be changed without the prior approval of the Central Government.



- xxii. The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
- xxiii. No damage to the flora and fauna of the adjoining area shall be caused;
- xxiv. *A Wildlife Conservation Plan for the habitat improvement, protection and conservation of Wildlife shall be prepared and implemented at the project cost by the State Government in consultation with the PCCF (Wildlife), Government of Chhattisgarh;*
- xxv. *Number and location of underpasses shall be finalized in consultation with the PCCF (Wildlife) and a report on the same supported with appropriate maps clearly providing attributes related to their location such as geographical coordinates, chainage etc shall be submitted along with the compliance report;*
- xxvi. The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;
- xxvii. The State Government shall ensure that settlement of rights, if any, in accordance with the provisions of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006.
- xxviii. The user agency shall submit the six monthly self-compliance report in respect of the above conditions as on 31st July and 31st January to the State Government and to the concerned Regional Office of the Ministry regularly.
- xxix. The State shall also monitor the compliance of conditions of the Stage-I approval and an annual report on the same may be submitted to this office as on 31st December every year.
- xxx. Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife; and
- xxxi. The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project.
- xxxii. Grant of working permission to the extant proposal may be considered by the State Government in accordance with the provisions as contained in the MoEF&CC's Guidelines dated 8.01.2014.

After receipt of a report on satisfactory compliance from the State Government in respect of conditions no. (iii), (v), (vi), (viii), (xvi), (xxiv) and (xxv) undertakings in respect of all other conditions, duly authenticated by the competent authority in the State Government, the proposal will be considered for grant of Stage-II approval under the Forest (Conservation) Act, 1980.

Yours faithfully,



(Charan Jeet Singh)
Scientist 'C'

Copy to:

1. The PCCF, Government of Chhattisgarh, Raipur
2. The Nodal Officer FCA), O/o of the PCCF, Government of Chhattisgarh, Raipur.
3. The Director, ROHQ, MoEF&CC, Indira Paryavaran Bhawan, Aliganj, Jorbagh Road, New Delhi
4. User Agency.
5. Guard File.

—sd—

(Charan Jeet Singh)
Scientist 'C'



कार्यालय प्रधान मुख्य वन संरक्षक एवं वन बल प्रमुख छत्तीसगढ़
अरण्य भवन, सेक्टर-19, नार्थ ब्लॉक, कैपिटल कॉम्प्लेक्स, नवा रायपुर, अटल नगर - 492002
(अपर प्रधान मुख्य वन संरक्षक - भू-प्रबंध) ई - मेल: apccf-lm.cg@gov.in

दूरभाष: 0771 - 2512840

नया रायपुर, दिनांक 27/11/2023

क्र./भू-प्रबंध/विविध/115-934/2620

प्रति,

वन मंडलाधिकारी
राजनांदगांव वन मंडल, राजनांदगांव (नोडल)
छत्तीसगढ़

विषय :-

Diversion of 15.690 ha. of Forest land/ Orange Forest land and Revenue Forest land under Forest Conservation Act 1980, in favour of Executive Deputy General Manager (Project), GAIL (India) Limited for non-forestry work "laying of the Gas Pipeline and O.F.C, 18-inch diameter natural gas under Khairagarh, Bilaspur, Korba, Janjgir-Champa and Raigarh Forest Division of Raigarh District in the State of Chhattisgarh"-reg.

संदर्भ: - पंजीयन क्रमांक - FP/CG/Other/154619/2022
भारत सरकार, पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय, एकीकृत क्षेत्रीय कार्यालय, नवा रायपुर का पत्र क्रमांक/ FC-II/ IROCH-20/ 2023/ 1524 दिनांक 21.11.2023

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विषयांतर्गत संदर्भित पत्र का अवलोकन करें (छायाप्रति संलग्न)।

1. प्रकरण में भारत सरकार, पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय, एकीकृत क्षेत्रीय कार्यालय, नवा रायपुर के संदर्भ पत्र द्वारा दिनांक 21.11.2023 से अंतिम चरण (औपचारिक) स्वीकृति प्रदान की गई है।

अतः अंतिम चरण स्वीकृति में अधिरोपित शर्तों का बिन्दुवार पालन प्रतिवेदन अन्य संबंधित वन मंडलों से भी प्राप्त कर मय पृथक - पृथक वचन पत्र सहित मुख्य वन संरक्षक, दुर्ग वृत्त के माध्यम से शीघ्र इस कार्यालय को प्रेषित करना सुनिश्चित करें।

2. वृक्ष विदोहन योजना अपर प्रधान मुख्य वन संरक्षक (उत्पादन) से अनुमोदित कराकर वृक्षों के विदोहन एवं परिवहन की राशि वन मंडल के पी. डी. खाते में जमा कराकर इस कार्यालय से आहरण की अनुमति प्राप्त करें।

संलग्न:- उपरोक्तानुसार (4 पृष्ठीय)

अ.प्र.मु.व.स (भू- प्रबंध / व.सं.अ)
छत्तीसगढ़

पृ. क्र0/भू-प्रबंध/विविध/115-934/2621
प्रतिलिपि सूचनार्थ एवं आवश्यक कार्यवाही हेतु:

रायपुर, दिनांक 27/11/2023

- मुख्य वन संरक्षक, दुर्ग वृत्त, दुर्ग, छत्तीसगढ़।
- मुख्य वन संरक्षक, बिलासपुर वृत्त, बिलासपुर, छत्तीसगढ़।
- वनमंडलाधिकारी, बिलासपुर वनमंडल, बिलासपुर, छत्तीसगढ़।
- वनमंडलाधिकारी, कोरबा, वनमंडल, कोरबा, छत्तीसगढ़।
- वनमंडलाधिकारी, जांजगीर-चांपा, वनमंडल, जांजगीर-चांपा, छत्तीसगढ़।
- वनमंडलाधिकारी, रायगढ़, वन मंडल, रायगढ़, छत्तीसगढ़।

संलग्न:- उपरोक्तानुसार (4 पृष्ठीय)

- उप महाप्रबंधक (परियोजना), गेल इंडिया लिमिटेड, रायपुर, छत्तीसगढ़।

अ.प्र.मु.व.स (भू- प्रबंध / व.सं.अ)
छत्तीसगढ़

भारत सरकार
पर्यावरण वन एवं जलवायु परिवर्तन मंत्रालय
उप - कार्यालय,
अरण्य भवन, नार्थ ब्लॉक,
सेक्टर -19, नवा रायपुर, अटल नगर
छत्तीसगढ़ - 492002
ईमेल- iro.raipur-mefcc@gov.in



GOVERNMENT OF INDIA
MINISTRY OF ENVIRONMENT, FORESTS &
CLIMATE CHANGE
SUB - OFFICE
ARANYA BHAWAN, NORTH BLOCK, SECTOR-19, NAVA
RAIPUR, ATAL NAGAR, CHHATTISGARH - 492002
Email - iro.raipur-mefcc@gov.in

File No. FC-II/IROCH-20/2023/1524

Date: 21/11/2023

To,

The Principal Secretary (Forests),
Government of Chhattisgarh,
Forest Department, Mantralaya,
Mahanadi Bhavan, Nava Raipur, Atal Nagar (CG).

Sub: Diversion of 15.690 ha of Forest land / Orange Forest land and Revenue Forest land under Forest Conservation Act 1980, in favour of Executive Deputy General Manager (Project), GAIL (India) Limited for non-forestry work "laying of the Gas Pipeline line and O.F.C, 18-inch diameter natural gas under Khairagarh, Bilaspur, Korba, Janjgir-Champa and Raigarh Forest Divisions of Raigarh District in the State of Chhattisgarh"-reg.

Sir,

Kindly refer to the letter no. F-5-09/2023/10-2 dated 08.05.2023 of State Government and letter no. LM/Misc./115-934/909 dated 17.04.2023 of APCCF, Nodal Officer (FCA), Chhattisgarh, on the above subject seeking prior approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980. It is to say that after examination of the proposal of the State Government, 'In-principle' approval was accorded by the Central Government vide its letter of even number dated 24.05.2023. The State Government of Chhattisgarh has now submitted a report on the compliance of conditions stipulated in the 'in-principle' approval and requested the State Government to grant final approval to the proposal.

In this connection, it is informed that on the basis of compliance report submitted by the Government of Chhattisgarh vide letter no. F-5-09/2023/10-2 dated 25.08.2023, and the APCCF, Nodal Officer (FCA), Chhattisgarh vide letter no. LM/Misc./115-934/1755 dated 26/07/2023, the Central Government hereby accords "Final /Stage-II Approval" under Section -2 of the Forest (Conservation) Act, 1980 for diversion of 15.690 ha of Forest land / Orange Forest land and Revenue Forest land under Forest Conservation Act 1980, in favour of Executive Deputy General Manager (Project), GAIL (India) Limited for non-forestry work "laying of the Gas Pipeline line and O.F.C, 18-inch diameter natural gas under Khairagarh, Bilaspur, Korba, Janjgir- Champa and Raigarh Forest Divisions of Raigarh District in the State of Chhattisgarh" subject to the fulfilment of the following conditions:

- i. Legal status of the diverted forest land shall remain unchanged;
- ii. Forest land will be handed over only after required non-forest land for the project is handed over by the user agency;
- iii. **Compensatory Afforestation:**
 - a. Compensatory afforestation shall be taken up by the Forest Department over 18.00 ha. of non - forest land in Patwari Halka no. 62, Khasrah no. 962 at Bhalera village, Teh.- Arang.

In Atal Nagar, Nava Raipur, Range in Raipur District. Sustainability certificate has been submitted by DFOs concerned. Certificate to defray the cost of CA has been submitted by the User Agency. As far as possible, a mixture of local indigenous species along with 10% RET species of Raipur District shall be planted and monoculture of any species may be avoided. The User agency shall make necessary facility/ construction in the area to meet the water requirement for plantation and for wild animals throughout the year;

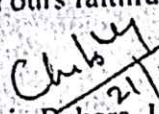
- b. The non-forest land which has been transferred and mutated in favour of the State Forest Department for the purpose of compensatory afforestation shall be declared as Reserved Forest under Section-4 or Protected Forest under Section-29 of the Indian Forest Act, 1927 or under the relevant Section(s) of the State Forest Act. The Nodal Officer, Forest (Conservation) Act, 1980 may report compliance within a period of six (6) months from the date of grant of final approval and send a copy of the original notification declaring the non-forest land under Section 4 or Section 29 of the Indian Forest Act, 1927, or under the relevant section of the State Forest Act as the case may be, to this Office for information and record;
- iv. The cost of Compensatory Afforestation at the prevailing wage rates as per compensatory afforestation scheme and the cost of survey, demarcation and erection of permanent pillars if required on the CA land, shall be deposited in advance with the Forest Department by the project authority. The CA will be maintained for 10 years. The scheme may include appropriate provision for anticipated cost escalation for works scheduled for subsequent years;
- v. NPV:
Additional amount of the NPV of the diverted forest land, if any, becoming due after finalization of the same by the Hon'ble Supreme Court of India on receipt of the report from the Expert Committee, shall be charged by the State Government from the User Agency. The User Agency shall furnish an undertaking to this effect;
- vi. The User agency shall restrict the felling of trees to minimum number in the diverted forest land and the trees shall be felled under the strict supervision of the State Forest Department and the cost of felling of trees shall be deposited by the User Agency with the State Forest Department; maximum numbers of trees in 10 meters RoW will be kept intact.
- vii. After completion of the project, the number of trees in the RoW of 10 meters shall be re-confirmed by the State Forest Department and damage, if any, shall be reported to the Regional Office. Forest land shall be handed over to the User Agency after re-confirmation of the number of pre-enumerated trees.
- viii. To improve the Forest/ Tree cover and to reduce pollution in the State, as mandated in National Forest Policy, 1988 and Environmental (Protection) Act, 1986 respectively, the User Agency with involvement of Joint Forest Management Committees (JFMC's) and in consultation with local DFOs shall raise at least 1000 tall seedlings for each of the 183 villages, of forestry species along with bamboo, fruit bearing, medicinal, ornamental and indigenous/local species. At least 50% of seedlings shall be planted in the vicinity of project area and remaining 50% of seedlings shall be distributed among villagers as per choice of villagers. The concerned JFMC's shall maintain record of plantation/ seedling distribution to villagers;
- ix. The user agency in consultation with State Forest Department shall prepare a scheme for the plantation of dwarf species trees/ medicinal plants that may be grown in the RoW as per the

norms Ministry of Petroleum and Natural Gas (MoPNG), Govt. of India, which is not hampering the Safety and maintenance of the pipeline.

- x. The State Government of Chhattisgarh/ Nodal Officer (FCA), Forest Department of Chhattisgarh shall ensure settlement of rights under the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 (No. 2 of 2007) before issuing an order for handing over of forest land to the User Agency as per Rule- 9 (6) (b) (ii) of Forest (Conservation) Rules, 2022 dated 28.06.2022;
- xi. The pipeline shall be laid down 1.5 meter below the ground, and after lying down of pipe line the ground will be leveled;
- xii. User Agency shall obtain Environmental Clearance as per the provisions of the Environmental (Protection) Act, 1986, if applicable;
- xiii. The layout plan of the proposal shall not be changed without prior approval of Central Government;
- xiv. No labour camp shall be established in the forest land;
- xv. Sufficient firewood, preferably the alternate fuel, shall be provided by the User Agency to the labourer after purchasing the same from the State Forest Department or the Forest Development Corporation or any other legal source of alternate fuel;
- xvi. The boundary of the diverted forest land shall be suitably demarcated on ground at the project cost, as per the directions of the concerned Divisional Forest Officer;
- xvii. No additional or new path will be constructed inside the forest area for transportation of construction materials for execution of the project work;
- xviii. The period of diversion under this approval shall be co-terminus with the period of lease to be granted in favour of the user agency or the project life, whichever is less;
- xix. The forest land shall not be used for any purpose other than that specified in the project proposal;
- xx. The forest land proposed to be diverted shall under no circumstances be transferred to any other agencies, department or person without prior approval of Govt. of India;
- xxi. Violation of any of these conditions will amount to violation of Forest (Conservation) Act, 1980 and action would be taken as per the MoEF&CC Guideline F. No. 11- 42/2017-FC dt 29/01/2018;
- xxii. Any other condition that the Ministry of Environment, Forests & Climate Change may stipulate from time to time. in the interest of conservation, protection and development offorests & wildlife;
- xxiii. The compliance report shall be uploaded one-portal (<https://parivesh.nic.in/>).

This issue with the approval of the competent Authority.

Yours faithfully,


21/11/23
Chaturbhuja Behera, IFS,
Inspector General of Forests.

Copy to:-

1. The Inspector General of Forests (RoHQ), Ministry of Environment, Forest and Climate Change, Indira Paryavaran Bhawan, Jorbagh Road, Aliganj, New Delhi- 110003.
2. The PCCF (HoFF), Government of Chhattisgarh, Aranya Bhawan, Sector-19, Nawa Raipur, C.G
3. The Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh, Aryan Bhawan, Nawa Raipur, Chhattisgarh.
4. User agency.
5. Guard file.

Chaturbhuja
21/11/23
Chaturbhuja Behera, IFS,
Inspector General of Forests.

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मान्य मुख्य वन संरक्षक (भू-प्रबंध)
छत्तीसगढ़, रायपुर

मान्य मुख्य वन संरक्षक (भू-प्रबंध)
छत्तीसगढ़
4114
24/11/23